



EAGLE MOUNTAIN

EAGLE MOUNTAIN PLANNING COMMISSION MEETING MINUTES

September 8, 2020, 5:30 p.m.
Eagle Mountain City Council Chambers
1650 East Stagecoach Run, Eagle Mountain, Utah 84005

5:30 P.M. – Eagle Mountain City Planning Commission Work Session – Electronic Meeting via Lifesize

COMMISSION MEMBERS PRESENT: Matthew Everett, Christopher Pengra, Rich Wood, and Brett Wright. Commissioner Erin Wells was excused.

CITY STAFF PRESENT: Steve Mumford, Assistant City Administrator/Community Development Director; Pete Kane, Long-Range Planning Manager; Michael Hadley, Planning Manager; Fionnuala Kofoed, City Recorder; and Elizabeth Fewkes, Recording Secretary.

Commissioner Wood called the meeting to order at 5:31 p.m.

1. Discussion Items

1.A. DISCUSSION ITEM – Proposed Code Amendment to EMMC 17.60 Landscaping, Buffering, Fencing and Transitioning

Long-Range Planning Manager Pete Kane presented the item and explained the amended standards relate to the Planning Commission's desire to create a zoning transition table and to incorporate the table into Municipal Code. The amendments also include adjustments to the Lot Size Transitioning tables in order to have the lot size segments match the various residential zoning districts. He presented proposed tables to replace both lot size transition tables (smaller to larger and larger to smaller) in order to include the 1/3-acre lot size and to update lot sizes designations to be in accordance with the residential zoning districts. Mr. Kane presented his recommended updated version of Figure 17.60.150(1) Lot Size Transitioning with the current residential zone lot size designations.

Mr. Kane also noted that staff recommends adding the following subitem to the Lot Size Transitioning (Section 17.60.150): "E. Modification of Lot Size Transitioning Requirement. Upon review of a development, the Planning Commission may recommend and/or the City Council may approve a modification to the requirements of Eagle Mountain Municipal Code (EMMC) 17.60.150 if they determine the intent of lot size transitioning is being met." Mr. Kane explained the purpose of the proposed language is to provide an exception for projects where zone transitioning occurs correctly, but the lot size transitioning is unable to be implemented as prescribed.

Mr. Kane presented recommended edits for the Zoning Transition Table (Section 17.60.160). For the chart to retain parallel compatible buffering between zone categories, the following edits are suggested: add RD2 to the R1 row or remove R1 from the RD2 row, add MF2 to the OP row or remove OP from the MF2 row, add CC to the CN row or remove CN from the CC row, add

MEC to the CN row or remove CN from the MEC row, add CC to the MEC row or remove MEC from the CC row, add MEC to the CR row or remove CR from the MEC row, add RC to the MF2 row or remove MF2 from the RC row, add I to the CS row or remove CS from the I row, add CS to the CR row or remove CR from the CS row, add CS to the MF1 row or remove MF1 from the CS row, add CS to the MF2 row or remove MF2 from the CS row, and add MEC to the AG row or remove AG from the MEC row. Mr. Kane suggested adding OP as a compatible buffer to the OS-N row and remedying a typographical error on the CN row correcting "RF" to "FR."

Mr. Kane stated Commissioner Wells had expressed concern regarding some of the commercial buffers for residential zones and recommended removing the CC zone as a compatible buffer to the RC zone, removing the CR zone as a compatible buffer to the MF1 zone, and removing the MF1 zone as a compatible buffer to the CS zone.

Commissioner Pengra expressed concern the zone transitioning requirements are too onerous for developers and inquired if other municipalities have the zone transitioning restrictions.

Mr. Kane stated the previous municipalities where he has worked had zone compatibility standards for adjacent properties and lot size compatibility was discussed during plat reviews, but lot size transitioning was not codified.

Commissioner Wood stated the previous and current Councilmembers directed the creation of lot size transitioning standards. Councilmember Curtis and he had written the original standards and this amendment is necessary to update the standards due to the removal of the tier language, bonus density, and base density standards from Municipal Code.

Commissioner Pengra stated that although the Planning Commission should consider the City Council's opinions, the Planning Commission is called to be an independent body and delegated to provide recommendations to the City Council for their consideration. He expressed concern regarding the Commissioners and/or Councilmembers drafting Municipal Code standards. He stated his preference for licensed professionals to draft standards then reviewed by the Planning Commission and City Council. He expressed concern regarding the lack of flexibility to development inherit in the lot size transitioning standards and unintended unfavorable consequences to the City.

Commissioner Everett noted the lot size transitioning standards are already included in Municipal Code and this amendment is an update rather than the introduction of lot size transitioning requirements.

Commissioner Wright expressed respect for Commissioner Pengra's concerns; however, he believes the lot size transition requirements increase clarity and serve as beneficial support to the residential zone standards.

Commissioner Wood inquired regarding the Commissioners' opinions regarding the staff-recommended subitem to allow for the City Council to approve modifications to lot size transitioning requirement if the intent of the standards is met.

Commissioner Wright stated he is not in favor of allowing for the City Council to approve exemptions and expressed concern permitting too much flexibility within the standards may reduce overall product quality and results.

Commissioner Everett stated his support for permitting some flexibility in Municipal Code standards if the intent of the standards is met.

Commissioner Pengra expressed his willingness to remove the recommended modification allowing the City Council to grant exemptions if desired by the other Commissioners. However, due to his concerns regarding the practical implementation of the prescriptive lot size transitioning standards, he intends to vote against recommending approval of the standards as presented.

Commissioner Wood stated he is against allowing the exception in the standards as the City Council has the authority to approve Municipal Code exemptions. He expressed concern that the inclusion of the staff recommended amendment would create ambiguity that developers could use an exemption included in the standards to circumvent requirements. He advocated for the retention of the commercial CC zone as a compatible buffer for the RC residential zone due to the likelihood of residential cottages being a part of a homeowners' association (HOA) with HOA land serving as a buffer between the residences and commercial uses. He expressed his support for allowing multifamily zoning as a compatible buffer for all commercial zones, including the CS zone that allows for commercial storage use.

Commissioners Everett and Wright concurred that multifamily zoning is a compatible buffer for all commercial zones.

1.B. DISCUSSION ITEM – Proposed Code Amendment to EMMC 16.10 Master Development Plans

Mr. Kane presented the item and stated the City Attorney Jeremy Cook reviewed the document. Mr. Kane explained Mr. Cook's feedback to EMMC 16.10.020 regarding master development plan requirements. The requirement for contiguous parcels to be considered as separate properties would allow property owners to divide properties into multiple developments of less than 50 acres each to circumvent the master development process requirement. The standards allow for the City Council to require a master development agreement (MDA) for any size parcel at their discretion; however, the City Council would need to be aware of the proposed development to implement the requirement in cases where parcels were being divided to avoid the standards which could become onerous. The requirement for parcels of contiguous properties of multiple landowners to be considered as separate properties unless the property owners create a corporation is unnecessary as the situation occurring is highly unlikely due to prohibitive legal requirements. The verbiage explaining exemptions regarding the waiving of the land use plan, utility plan, infrastructure funding analysis, or MDA of the master development plan (MDP) process should be amended to clarify the City Council is the authoritative body acting upon Planning Commission recommendations. EMMC 16.10.040 (D) Master Development Agreement is superfluous and should be removed as the material is covered elsewhere in the

standards. In EMMC 16.10.050 (E), the inclusion of meeting notification requirements per State standards is unnecessary and the additional levels of review requirements may be onerous, due to time delays, and are unclear regarding the criteria for the third-party legal counsel review.

Commissioner Wood stated an explanation of the State notification requirements had been included in the previous MDA standards and concurred the verbiage is no longer necessary and should be removed. He stated the City Council was in favor of the additional layers of review and explained the purpose of the third-party legal review could be clarified as a review of the master development plan against the City standards as outlined in this title and chapter and with State code. He expressed his preference to expend the necessary time to thoroughly review MDAs despite any resulting development delay.

Commissioner Pengra requested the implementation of a process to be able to itemize City Council concerns to identify and discuss individual Councilmember concerns publicly and to allow staff to adopt Municipal Code standards that appropriately address concerns. He stated the MDA standards are outdated and require updating. He reiterated his concerns regarding Commissioners and Councilmembers amending Municipal Code standards. He expressed concern regarding several sections included in the proposed standard amendments and the potential for unsatisfactory outcomes of adopting the standards as presently proposed.

Commissioner Everett concurred with Mr. Cook's recommendations regarding verbiage clarification. He stated staff has inadequate time to adequately address the amount of Municipal Code standards in need of amendments and expressed concern regarding the cost of procuring or contracting additional staff. He stated his support of Commissioners' and Councilmembers' willingness to assist with Municipal Code amendments as a benefit to the City. He concurred with Commissioner Pengra's request for facilitated collaboration and communication between the City Council and the Planning Commission.

Commissioner Wright recognized Commissioner Pengra's concerns and expressed his desire to discuss Commissioner Pengra's specific concerns regarding the suggested amendments. He expressed his respect for staff and concurred with Commissioner Everett's statements regarding the benefits of Commissioners and Councilmembers assisting with standard amendments to lessen staff's workload. He stated his support of updating the MDA standards as an aid to the City.

Commissioner Pengra stated that the proposed amendments seem politicized and unprofessional and said nonprofessionals writing Municipal Code results in disjointed standards. He expressed concern regarding private communication between Councilmembers and Commissioners regarding Municipal Code amendments.

Commissioner Wood stated the amendment process has involved staff and all of the members of the City Council and their feedback had been incorporated. He requested for the Commissioners to limit comments to the topic of the item under discussion.

Mr. Kane verified that Community Development Director/Assistant City Administrator Steve Mumford, Mr. Cook, and he had reviewed and discussed the proposed amendments.

Commissioner Pengra concurred with the expressed concerns regarding EMMC 16.10.020. He stated the term “scale of development” used as a replacement to “density” in EMMC 16.10.040 General Considerations is ambiguous. Mr. Kane noted Section 16.10.040 General Considerations required a numbering correction and should be Section 16.10.030.

Commissioner Pengra stated the second paragraph in EMMC 16.10.040 Application is informal and confusing due to listing three components of the plan and then a requirement regarding “both plans.” Mr. Kane recommended amending the verbiage to “both a land use plan and a utility plan” for clarification.

Commissioner Pengra expressed concern regarding the requirement for a General Plan Compliance Statement in Section 16.10.040(B)(5). Discussion ensued regarding the General Plan Compliance Statement requirement. Commissioner Wood recommended for the requirement to be included in Section 16.10.070.

Commissioner Pengra stated EMMC 16.10.050(E) Master Development Agreement approval should be condensed. He inquired regarding the reason the MDP is not allowed to serve as the preliminary plat.

Discussion ensued regarding preliminary plat requirements in relation to the MDA amendment process.

Commissioner Pengra expressed concern regarding the nullification of the MDA upon plan changes due to the certainty of project changes and the burden of amending the MDA for all changes and said MDAs inherently involve the risk of undesirable changes for all parties. He expressed concern regarding the number of issues he had identified with the proposed amendments and said he doubts he was able to identify all potential concerns.

1.C. DISCUSSION ITEM – Proposed Code Amendment to Add EMMC 17.23 Open Space Zone

1.D. DISCUSSION ITEM – Proposed Code Amendment to Add EMMC 17.31 Public Facilities Zone

Items 1.C. and 1.D. were discussed concurrently.

Mr. Kane explained the proposed amendments will create two additional zones: the Open Space zone, consisting of two subzones Improved Open Space and Natural Open Space, and the Public Facilities zone. He explained municipalities utilize residentially-zoned properties for open space and public facilities uses. Assigning the uses to specific zones facilitates designating land uses in the City and defining use restrictions and provides clearer data as to how much land is actually used residentially. The zones may be applied to both public and privately owned land. He stated appropriate zoning ideally will be applied to the corresponding land parcels during the MDP approval process.

Commissioner Wood requested for the items 1.C. and 1.D. to be included on the agenda for work and policy sessions for the next meeting.

Commissioner Wood adjourned the work session at 6:37 p.m.

6:30 P.M. – Eagle Mountain City Planning Commission Policy Session

Commissioner Wood called the meeting to order at 6:45 pm.

2. Pledge of Allegiance

City Recorder Fionnuala Kofoed led the Pledge of Allegiance.

3. Declaration of Conflicts of Interest

None.

4. Approval of Meeting Minutes

4.A. August 25, 2020, Planning Commission Minutes

Commissioner Everett requested for his statement regarding the SilverLake 28 site plan fencing, "I believe that the vinyl fencing in that area, specifically along Golden Eagle, looks like crap," to be reflected in the minutes.

MOTION: *Commissioner Everett moved to approve the August 25, 2020 minutes as amended. Commissioner Wright seconded the motion. Those voting aye: Matthew Everett, Brett Wright, Rich Wood, and Christopher Pengra. The motion passed with a unanimous vote.*

5. Status Report

Mr. Kane stated the City Council reviewed the Ault Farms and Triumph concept plans and provided similar feedback to the concerns the Planning Commission had expressed. The special use standards amendment was approved with a modification to require that gas station vents are located a minimum of 200 feet from residential property lines and the previously included places of congregation and a State Code reference correction for the definition of nuisance. The City Council determined current regulations permitting chickens were inclusive of roosters and the Municipal Code amendment limiting rooster ownership to specific residential zones was denied.

6. Action and Advisory Items

6.A. VDP Investment Commercial Property (Concept Plan)

Mr. Kane presented the item. The project is located at the corner of Ranches Parkway and Half Mile Road and consists of nine retail units on approximately one acre of undeveloped land. The Ranches Master Development Plan and Agreement have expired, and all vested rights are

invalid. The intended zoning district for the subject property is Commercial Neighborhood (CN). The parcel is designated Community Commercial on the Future Land Use and Transportation map. The City is working on rezoning the commercial properties in the Ranches to meet current zoning designations. The applicant may need to submit a rezone application if the City rezone is not already approved at the time they apply for a site plan. The location of the trash enclosure is not compliant with Municipal Code standards and the southwest corner of the property is a more appropriate location. If the commercial spaces are used for retail, 44 parking stalls and 2 ADA stalls are required. Access to the property via Half Mile Road is preferred as it maximizes the distance to the intersection. The applicant has not provided the intended uses for the commercial units; the uses will need to comply with the permitted uses for the CN zone.

Applicant representative Van Nguyen explained the parking lot had been reoriented and expressed his willingness to relocate the trash enclosure to the southwest corner.

Commissioner Wright directed the applicant to review Municipal Code building articulation requirements before submitting a site plan. He expressed his approval of the concept plan except for the non-compliant location of the trash enclosure.

Commissioner Everett concurred with Commissioner Wright's comments and stated the project is appropriate for the area.

Commissioner Pengra concurred with the other Commissioners and thanked Mr. Nguyen for investing in Eagle Mountain.

Commissioner Wood recommended the installation of fencing between the south edge of the building fronting on Ranches Parkway and fencing along the south of the property to block pedestrian access to discourage the parking lot being used as overflow parking for the adjacent residential areas.

Mr. Nguyen stated a fence is planned for the property, but the material has yet to be determined. He explained the requirement to have the building along the street front means he needs access to the business spaces from the street as well as from the parking lot. He would prefer the building set to the back of the property, so he only needs one access for each commercial space but understands the Municipal Code requirement.

Mr. Kane explained the building had been reoriented to locate the building adjacent to the roadways and parking lot at the side/rear of the property to comply with Municipal Code requirements.

Commissioner Wright congratulated the applicant for heeding staff advice resulting in a highly favorable review of the concept plan and thanked staff for their direction to the applicant.

Commissioner Wood reiterated Commissioner Wright's suggestion to review building design standards.

6.B. PUBLIC HEARING – Development Code Amendment for Master Development Plans and Agreements (EMMC 16.10)

Mr. Kane presented the item. The Planning Commission and City Council sought to revise and update the requirements for MDAs and MDPs based upon previous proposals. The proposed amendments set standards for all MDAs to address concerns regarding previous agreements with the City. Staff recommends for the Planning Commission to recommend approval of the proposed amendments to the City Council.

Mr. Kane verified that Municipal Code standards allow for master site plans to serve as preliminary plats if the master site plan meets the stipulated requirements. Commissioner Pengra expressed concern that not also allowing the MDP, which is more detailed than a master site plan, to serve as a preliminary plat is overly restrictive.

Mr. Kane stated Mr. Cook had expressed that the five-year time limit for development agreements stipulated in EMMC 16.10.070(E)(1) may be too restrictive for the completion of large projects.

Discussion ensued regarding the proposed five-year timeframe limitation, other timeframe options and recommendations, potential extension options, concerns restrictive requirements will discourage desirable development and the associated large community investments, potentially including separate residential and commercial timeframe requirements, and the desirability of requiring large projects to be divided into smaller projects that can be completed within the prescribed five years.

Commissioner Wood opened the public hearing at 7:30 p.m. No comments were submitted to the City Recorder's Office and no public was in attendance to make comment. As there were no comments, Commissioner Wood closed the hearing.

Commissioner Wood noted the proposed amendments grant the MDA and MDP extension authority to the Planning Commission and recommended a maximum timeframe be included in the standards with the specific timeframe for a project to be granted at the discretion of the Planning Commission during the extension approval. He stated the MDA stipulates for specific tasks to be completed by certain dates or the MDA becomes invalid and the timeframe approval will take into consideration staff recommendations and if the developer has met the required benchmarks.

Commissioner Everett recommended an initial six-year timeframe with the option to apply for one or two extension periods of two years each. He stated that five years may be too short of a period, but expressed concern allowing a ten-year timeframe for all projects. He expressed his desire to provide flexibility to account for unforeseen circumstances that result in delays if the developer has demonstrated due diligence in meeting the MDA benchmarks.

Commissioner Wood noted the MDA agreement includes extension criteria due to unforeseen circumstances.

Commissioner Wright expressed his approval of Commissioner Everett's recommendation and requested staff's opinion regarding a six-year initial timeframe with the option to apply for two potential extensions of up to two-year each.

Mr. Kane stated an additional year could be beneficial; however, he expressed concern regarding the ramifications of procedurally requiring the repetition of the timeframe extension approval process.

Mr. Mumford expressed his approval of the reasoning behind the Planning Commission's concerns and recommended suggestions; however, larger and complex projects require more completion time, and setting a timeframe that only accommodates smaller projects may discourage larger projects and the resulting parks and amenity investments. Also, requiring Planning Commission approval for timeframe extensions increases risks for the developers as the extension could be denied and discourages development investment in larger projects within the City. He stated his preference to include benchmarks and extension periods rather than a set, inflexible timeframe standard.

Planning Manager Michael Hadley stated allowing extensions up to a ten-year timeframe is reasonable for large projects.

Commissioner Wood stated the City Councilmembers expressed the desire to encourage smaller developments within the City with shorter timeframes and for large developments to be divided into several smaller projects. He stated the MDA amendments to Municipal Code are intended to regulate how developments are built in the City. He noted that the criteria for an extension require that "the applicant must have shown a good faith effort to initiate the project by systematically completing predevelopment conditions," which provides some flexibility in meeting the benchmarks.

Mr. Kane stated the predevelopment conditions are completed prior to breaking ground on the project and suggested adding verbiage to require "benchmarks completed to date" if the Commission determines to use benchmarks as an extension requirement.

Commissioner Pengra expressed his support of Commissioner Everett's recommendation to allow large developments to extend up to a ten-year timeframe for large projects and that fewer development obstructions encourage both commercial and residential development.

Mr. Kane stated the Municipal Code amendments require an MDA for any property over 50 acres and the City Council can require an MDA for properties smaller than 50 acres; however, the standards do not include verbiage to allow for the City Council to exempt the requirement for properties over 50 acres.

Mr. Mumford stated as an MDA is a rezone request, it is a legislative decision and the City Council and Planning Commission are not required to approve a plan should it meet Municipal Code criteria. He stated if the project complies with the General Plan, the request could still be denied based upon the content of the agreement when merited. He said the Brandon Park project included a detailed MDP which was allowed to serve as a preliminary plat and the Evans Ranch

preliminary plats were identical to the MDP. Due to such projects, an exemption was added to Municipal Code to allow the MDP to serve as a preliminary plat because requiring the approvals of preliminary plats identical to the MDP was onerous. He recommended not requiring preliminary plat level of detail for all MDP but allowing the flexibility for an MDP to serve as the preliminary plat when appropriate.

MOTION: *Commissioner Pengra moved to table a development code amendment for Master Development Plans and Agreements (EMMC 16.10) until the next meeting to allow additional time for the Commissioners to submit comments to staff for consideration for amendments and until staff provides the Commissioners with the notes provided by legal counsel. Commissioner Everett seconded the motion. Those voting aye: Matthew Everett, Brett Wright, and Christopher Pengra. Those voting nay: Rich Wood. The motion carried with a vote of 3:1.*

Commissioner Wood explained his dissention was due to his opinion the Planning Commission had reviewed the amendment enough times in order to make a recommendation to the City Council regarding the item.

7. Discussion Items

Commissioner Everett requested clarification and updates regarding previously tabled items that were anticipated to return for this meeting.

Mr. Mumford stated the B & H Property had not submitted an updated Rezone and General Plan Amendment application. He said the applicant is working on addressing the concerns expressed by the Planning Commission for the SilverLake 28 site plan and explained the applicant intends to reference the approved preliminary plat regarding some of the concerns. He said staff desires to allow applicants adequate time to address concerns or for the applicant to explain the reasoning behind moving forward without resolving the Planning Commission's concerns.

Commissioner Everett inquired regarding the appropriate timeframe to set when tabling an item and asked if the Planning Commission should consult the applicants to determine an adequate timeframe for them to address concerns.

Mr. Mumford stated applicants generally desire to return the following meeting; however, some applicants have returned without adequately addressing concerns when returning the following meeting. He stated his approval of Commissioner Everett's suggestion to ask the applicants the amount of time they require to address concerns. He said smaller concerns can be addressed before the following meeting and recommended asking the applicant regarding the time necessary to address larger concerns.

Commissioner Everett explained his inquiry was due to concerns regarding agenda length due to returning tabled items in addition to new items and his desire to assist staff in managing the number of items on future agendas.

Mr. Mumford explained staff attempts to balance allowing applications to move forward with ensuring the Planning Commission concerns have been reasonably addressed. He stated working with the applicant to determine an adequate timeframe when tabling an item will assist staff with their efforts.

8. Next scheduled meeting

9. Adjournment

MOTION: *Commissioner Wright moved to adjourn the meeting at 8:08 p.m. Commissioner Everett seconded the motion. Those voting aye: Matthew Everett, Brett Wright, Rich Wood, and Christopher Pengra. The motion passed with a unanimous vote.*

The meeting was adjourned at 8:08 p.m.

Approved by the Planning Commission on September 22, 2020.


Steve Mumford (S:\17-2020 08-41 MDT)
Steve Mumford, AICP
Assistant City Administrator/Community Development Director

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Final Audit Report

2020-09-23

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